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Provision of March 13, 2025

Register of provisions

No. 133 of March 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD to Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

Resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.

web n. 9107633 (hereinafter "Guarantor Regulation

No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's

Regulation No. 1/2000 on the organization and

functioning of the office of the Guarantor for the

protection of personal data, doc. web n. 1098801;

Reporting Attorney Guido Scorza;

WHEREAS

1. Introduction.

With a complaint submitted pursuant to Article 77 of

the Regulation, XX represented that certain resolutions

containing personal data concerning him have been

published on the notice board of the Municipality of Roccaraso

(hereinafter "Municipality"), where he performs his

work activities. In particular, he complained about the

publication of Resolution No. XX of XX by the Municipal Council, published on XX, of Determination No. XX, Reg. Gen. No. XX of XX, published on XX, and of Resolution No. XX of XX by the Municipal Council, published on XX. It was specifically represented that in the aforementioned acts “the name and surname, personal data, and personal information of the complainant are clearly stated, as well as clear references to events related to the employment relationship with the Entity.”

It was also represented that Determination Administrative Sector No. XX (Reg. Gen. No. XX) of XX, published on XX, with attachments “XX” and “XX” and Determination No. XX (Reg. Gen. No. XX) of XX, published on XX, containing personal data concerning him, have also been published on the Municipality's notice board.

2. The investigative activity.

In response to a request for information from this Authority (note prot. No. XX of XX), the Municipality, with note prot. No. XX of XX, stated, in particular, that:

- “following a request for deletion of his data by the complainant on XX, ‘immediately followed the request for clarifications from [the Municipality], directed to the IT technician who has been responsible for the publication in recent years,’ asking in particular ‘to report on the state of the art, paying particular attention to the changes made to the publication of acts that led to the complaints in question’;
- “the IT technician reported with note prot. XX of XX indicating [...that] the acts subject to the dispute were published following the instructions given to the office over the years; no changes have been made to the methods of publication of the acts in the last 10 years; with the same methods with which the acts subject to the dispute were published, [...] as soon as the notification was received, the offices informed the company Halley Informatica (the company that provides the management software for the Municipality) which resolved the issue within 48 hours;”;
- “in particular, in the technical attachment, it was found that ‘each act published in the Notice Board, if it is a Resolution or Determination, is simultaneously and automatically uploaded by the Halley system in two distinct sections of the Halleyweb.com portal, from which the institutional portal of the Municipality of Roccaraso loads the data. Specifically, within two dedicated sections in Transparent Administration’;
- “according to the normal practice of the Halley system, the acts present in these two specific sections were not subject to automatic removal (as correctly occurs for the Notice Board) but remained available for free consultation”;
- “on XX, a support ticket was opened with the provider (Halley), [in which it was requested

that in the two sections of Transparent Administration] the acts, as already correctly occurs in the Notice Board, should no longer be consultable after their natural expiration’;

- “on the same day, [...] Halley Informatica communicated, through the courtesy service, the processing of the ticket in question, adapting, the next day, the entire platform and aligning technically with what was requested.”

With note prot. n. XX, dated XX, the Authority, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having published, on its institutional website, acts and documents containing personal data and information related to events connected to the employment relationship with the complainant, in particular: resolution n. XX of XX of the Municipal Council, determination n. XX, Reg. Gen. n. XX of XX, and resolution n. XX of XX of the Municipal Council, as well as determinations n. XX (Reg. Gen. n. XX) and XX (Reg. Gen. n. XX) of XX, in violation of Articles 5, 6 of the Regulation, as well as Article 2-ter of the Code. Furthermore, the Municipality, following a request to exercise the rights of the interested party, did not provide the necessary feedback, in violation of Article 12, paragraph 3, of the Regulation.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note prot. n. XX of XX, the Municipality submitted a note, requesting this Authority to be heard “in order to provide all the information and necessary elements to clarify the matter in question.”

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (minutes prot. n. XX), the Municipality stated, in particular, that:

- “the Municipality, having acknowledged what happened, has planned and partially implemented further technical and organizational measures to prevent the occurrence of similar events to those subject to complaint, also regarding the feedback to requests for the exercise of rights submitted by the interested parties, also planning training interventions aimed at staff regarding the delicate relationship between administrative transparency and the protection of personal data. Furthermore, interventions on the Municipality's information system have been planned, in order to allow the automatic cessation of the online publication of administrative documents upon the expiration of the publication period provided each time. Finally, the Municipality has structured the online publication process of administrative documents in such a way as to systematically separate the parts of the documents containing personal data from those that do not contain them”;

- “the Municipality acted in absolute good faith, believing it was necessary to ensure maximum transparency of its administrative acts, and therefore, the conduct was of a negligent nature.”

3. Outcome of the investigative activity. The applicable legislation.

The regulation on the protection of personal data provides that public entities, within the work context, may process the personal data of the interested parties, including those related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided for by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is “necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter of the Code).

More generally, European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of this regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for

processing and other measures to ensure lawful and fair processing [...]” (Article 6, paragraph 2 of the Regulation). In this regard, it is emphasized that the operation of dissemination of personal data (such as online publication) by public entities is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation or by general administrative act (Article 2-ter of the Code).

In particular, regarding the exercise of rights, Articles 15 to 22 of the Regulation grant the interested party the right to request the data controller access to personal data and, where applicable, the rectification or deletion of the same or the limitation of processing concerning them or to object to their processing, as well as the right to data portability.

The data controller is in any case required to comply with the principles regarding the protection of personal data (Article 5 of the Regulation).

3.1 The failure to respond to the request for the exercise of the rights of the interested party.

Article 12 of the Regulation provides that the data controller must provide the interested party with information regarding the action taken concerning a request pursuant to Articles 15 to 22 of the Regulation without undue delay and, in any case, no later than one month from the receipt of the request itself (paragraph 3). If the data controller does not comply with the request of the interested party, they must inform the interested party without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority.

control and to propose judicial appeal (par. 4).

In the specific case, from the documentation in the records, it has emerged that, although following the request from XX of the complainant, the Municipality took action, including the involvement of its Data Protection Officer, and consequently proceeded to delete the personal data of the complainant contained in the aforementioned resolutions, it did not, in any case, provide any feedback to the interested party in the manner prescribed by the Regulation. As mentioned above, data controllers who receive requests for the exercise of rights under Articles 15-22 of the Regulation from data subjects must always, where the conditions apply, provide feedback to the data subjects within the terms and in the manner prescribed by the Regulation (see Recital 59 and Article 12 of the Regulation). For these reasons, it is highlighted that the Municipality, although it declared that it had proceeded to delete the personal data of the complainant in the resolutions in question, did not, however, provide the necessary feedback to the interested party, in violation of Article 12, par. 3 of the Regulation.

3.2 The dissemination of personal data of workers.

As evidenced by the records and the statements made by the data controller during the investigation, as well as the findings made based on the elements acquired, following the investigative activity and subsequent evaluations of this Department, the Municipality has published on its institutional website various acts and documents containing personal data and information specifically related to events concerning the employment relationship with the interested party. Regarding the legal basis that would have justified the dissemination of the complainant's personal data, the Municipality has not proven the existence of a specific norm that obliges the entity to publish the personal data of the complainant with whom there was an ongoing dispute – in relation to the employment relationship with the entity – in the resolutions regarding the "assignment of legal tasks for defense and judicial representation" of the Municipality. It should be noted that in numerous cases, the Authority has declared the illegality of the dissemination of personal data of workers, particularly regarding the publication of information related to disputes initiated between the interested parties and the employer administration (see, among many, decisions of April 13, 2023, no. 124, web doc no. 9890273; May 26, 2022, no. 196, web doc no. 9789541; April 28, 2022, no. 149, web doc no. 9777127; January 27, 2021, no. 34, web doc no. 9549165).

In particular, the Authority has long represented in numerous decisions that the personal data protection system requires for any processing operation (Article 4, point 2 of the Regulation), including dissemination (Article 2-ter, paragraph 4, letter b) of the Code), the necessity of having an appropriate legal basis. Guidelines have long been provided regarding the prerequisites (and the occurrence of these, the specific modalities) for the lawful publication, including online, of acts and documents

containing personal data related to workers. The Authority has clarified on numerous occasions that even the presence of a specific publicity regime cannot entail any automatism regarding the online dissemination of personal data and information, nor a derogation from the principles concerning the protection of personal data (see, among many, the latest decision of October 17, 2024, no. 612, web doc 10073751 and previous ones cited therein). This is also confirmed by the personal data protection system contained in the Regulation, under which it is provided that the data controller must implement "appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed" and must be "able to demonstrate" – in light of the principle of "accountability" – that it has done so (Articles 5, par. 2; 24 and 25, par. 2, Regulation).

It is observed, in particular, that the publication of acts on the institutional website in the section "Albo pretorio" and in the section "Amministrazione trasparente" serves different needs and purposes. In this regard, it is noted that the automatic publication in both sections by the Municipality, as emerges from the documentation in the records, without having previously verified whether the publication of such acts complies with a transparency obligation or specific sector provisions, may result in a publication lacking an appropriate legal basis (see "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for publicity and transparency purposes on the web by public entities and other obligated entities" of May 15, 2014, no. 243, web doc no. 3134436 and "Guidelines on the processing of personal data of workers for the purpose of managing the employment relationship in the public sector" of June 14, 2007, web doc no. 1417809).

In particular, the specific regulations concerning the publicity of administrative acts in the section "Albo Pretorio" (see Article 124 of Legislative Decree no. 267 of August 18, 2000 - Consolidated Law on the laws governing local authorities; see also Article 32, paragraph 1, of Law no. 69 of June 18, 2009) - which regulates the publication for 15 days of the resolutions of the Entity - merely provides that the obligations for the publication of acts and administrative measures having the effect of legal publicity are considered fulfilled with the publication on their own websites by the administrations and public entities obliged, but does not provide anything regarding the publication of personal data of the interested parties, with particular reference to...

of the specific circumstances of the case, including the nature of the data involved and the context of the processing.

7. Final provisions.

In light of the above considerations, the Garante orders the following:

- a) The Municipality is to cease any further dissemination of personal data that may, even indirectly, allow for the identification of the complainant in relation to the aforementioned resolutions or any further resolutions concerning the same, particularly regarding information related to any disputes initiated between the complainant and the employer administration.
- b) The Garante imposes an administrative monetary sanction on the Municipality, the amount of which shall be determined in accordance with the provisions of Article 83, paragraph 5, of the Regulation, taking into account the specific circumstances of the case.
- c) The Garante mandates the publication of this decision, in full or in extract, on its website, in accordance with Article 166, paragraph 7, of the Code.

This decision is made in accordance with the powers granted to the Garante under the applicable regulations and is effective immediately.

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- with particular regard to the nature, severity, and duration of the violation, it must be considered that the Municipality, being small in size, has disseminated personal data related solely to the complainant and without indexing on search engines (cf. art. 83, par. 2, lett. a), of the Regulation);
- with specific regard to the subjective profile of the violation, the Municipality, erroneously adopting an automatic publication system both in the public register and in transparent administration, acted under the mistaken belief that it was fulfilling a legal obligation without taking into account the different needs and purposes of publication in each of the aforementioned sections, despite the numerous indications

provided by the Authority since 2014 with the aforementioned Guidelines (art. 83, par. 2, lett. b), of the Regulation);

- regarding the categories of personal data, only common data of the complainant have been disseminated (art. 83, par. 2 lett. g) of the Regulation).

Having said this, the following aggravating and mitigating circumstances must be considered:

- there are no previous relevant violations committed by the data controller, having the same nature as those established in relation to the facts of the complaint (cf. art. 83, par. 2, lett. e), of the Regulation);
- although the Municipality has taken steps to obscure the name and surname of the complainant, the latter remains identifiable due to the clear references to the general register number of the procedure and the relevant judicial authority (art. 83, par. 2, lett. f), of the Regulation);
- the Municipality has offered good cooperation with the Authority and, in light of the events that occurred, has implemented technical and organizational measures to prevent similar incidents to those subject to the complaint (art. 83, par. 2, lett. f), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €2,000.00 (two thousand) for the violation of articles 5, 6, and 12 of the Regulation, as well as article 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also considered that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed. This is in consideration of the information that has been disseminated via the Municipality's website regarding matters related to the complainant's employment relationship, given the particular sensitivity of sharing information in a narrow and specific work context and also considering the lack of response to the request for the exercise of the complainant's rights.

It is finally noted that the conditions of art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

pursuant to articles 57, par. 1, lett. f) and 83 of the Regulation, finds the unlawfulness of the processing carried out by the Municipality of Roccaraso as outlined in the reasoning, for the violation of articles 5, 6, and 12 of the Regulation, as well as article 2-ter of the Code;

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation, the Municipality of Roccaraso, represented by the legal representative pro tempore, located at Viale Degli Alberghi, 2/A - 67037 Roccaraso (AQ) – 94100, C.F. 82000150662, to pay the sum of €2,000.00 (two thousand) as an administrative monetary sanction for the violations indicated in this provision;

COMMANDS

therefore the Municipality of Roccaraso to pay the aforementioned sum of €2,000.00 (two thousand) according to the methods indicated in the attachment, within thirty days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts in accordance with art. 27 of law no. 689/1981. It is represented that pursuant to art. 166, paragraph 8 of the Code, the offender retains the right to settle the dispute by paying - always according to the methods indicated in the attachment - an amount equal to half of the imposed sanction within the term referred to in art. 10, paragraph 3, of legislative decree no. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;

DISPOSES

- a) pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Regulation of the Authority no. 1/2019, the publication of the injunction order on the Authority's website;
- b) pursuant to art. 154-bis, paragraph 3 of the Code and art. 37 of the Regulation of the Authority no. 1/2019, the publication of this provision on the Authority's website;
- c) pursuant to art. 17 of the Regulation of the Authority no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to articles 78 of the Regulation, 152 of the Code, and 10 of legislative decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 13, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei